NCAT
NSW Civil & Administrative Tribunal

February 2021

Tenancy application

CONSUMER AND COMMERCIAL DIVISION | TENANCY LIST

Complete this form to apply to NCAT's Consumer and Commercial Division for orders under the *Residential Tenancies Act 2010* to resolve a tenancy dispute. Tenancy applications can also be lodged online with NCAT Online.

File Number
Office use only

1. RENTED PREMISES

A. ADDRESS OF RENTED PREMISES

Provide the address of the house or unit that is the rental property, as it appears on the residential tenancy agreement.

Address:

B. RENTAL BOND NUMBER

C. REAL ESTATE AGENCY DETAILS

If applicable, provide name and address of agency managing the rented premises.

Agency name:

Agency address:

D. RELATED FILE NUMBERS

List any previous NCAT file numbers relating to the parties and the current dispute:

E. ADDITIONAL INFORMATION

☐ Are you making this application because of the National Disability Insurance Scheme?

☐ Is this application about a Domestic Violence Termination Notice?

2. APPLICANT

A. APPLICANT TYPE

Tick the box that best describes the person lodging the application to the Tribunal.

☐ Landlord ☐ Tenant ☐ Co-tenant ☐ Former co-tenant

☐ Occupant ☐ Prospective tenant ☐ Other person *(please specify)*

B. APPLICANT'S DETAILS

Provide details of person or company applying to the Tribunal. For multiple applicants attach details on a separate sheet. For co-tenant disputes attach landlord's details on a separate sheet.

Full name:

Postal address:

Contact details: Daytime telephone Mobile

Email address:

By providing an email address you are agreeing that any NCAT notices, orders and correspondence can be emailed to you. Ensure the email address provided is accurate and the account is checked regularly.

3. RESPONDENT

A. RESPONDENT TYPE

Tick the box that best describes the person you are making the applicant against.

☐ Landlord ☐ Tenant ☐ Co-tenant ☐ Former tenant

☐ Landlord's agent (s.61 & 134 only) ☐ Mortgagee ☐ Occupant

B. RESPONDENT'S DETAILS

Who is the application against? Provide the respondent's name and their postal address. For multiple respondents attach details on separate sheet. If the respondent is a company or business, please attach a current business name extract or company extract from ASIC.

Full name:

Postal address:

Contact details: Daytime telephone Mobile

Email address:

4. ORDER DETAILS

A. WHAT ORDERS DO YOU WANT?

Write down the section/s of the *Residential Tenancies Act 2010* and the orders you want the Tribunal to make. Refer to the Tenancy and Social Housing Fact Sheet for sections of the Act and types of orders that can be made.

B. REASONS FOR ASKING FOR ORDERS?

You must explain why you are lodging this application and asking for Tribunal orders by providing as much information as possible. If the space below is insufficient you can attach additional information to this form.

5. LANGUAGE AND DISABILITY SUPPORT

A. SUPPORT REQUIREMENTS

Indicate whether you have a disability-related need or other request for support at the hearing.

B. INTERPRETER

Do you need an interpreter for the hearing? ☐ No ☐ Yes *(specify language)*:

6. APPLICATION CHECKLIST

☐ **I have attached all other documents relevant to this application**
Include all relevant information with your application. Relevant documents may include the residential tenancy agreement, notices, letters and other correspondence, quotes, invoices etc. Note: A copy of this application and any attachments will be sent to the respondent.

☐ **I have attached a recent ASIC company or business name extract**
If the respondent a company or business, attach a current business name extract or company extract from ASIC which shows the organisation's registered name and address. Extracts can be purchased online on the ASIC website.

☐ **I have made a copy of this application for my own records**
Before lodging your application with NCAT you must make a copy of your application for your own records.

☐ **I have attached the application fee**
Refer to the fee schedule on the NCAT website. Credit card payments can be made by submitting a credit card authority form with your application. Credit card surcharges apply. Cheque or money order payments are to be made out to 'NSW Civil and Administrative Tribunal' or 'NCAT'. Payment can be made in person at any NCAT Registry or Service NSW Centre. Concession fee applicants must provide a photocopy of their concession card.

If you are unable to pay the concession fee or are not eligible, NCAT may consider waiving the fee fully or partially. To request a fee waiver please complete the fee waiver request form.

7. SIGNATURE

Applicant's signature or signature of representative.

Name

Signature **Date**

Lodge your Application with the fee at your nearest NCAT Registry
For NCAT Consumer and Commercial Division Registry locations visit the NCAT website. For all NCAT enquiries telephone 1300 006 228 or visit www.ncat.nsw.gov.au.

GUIDE TO COMPLETING THE APPLICATION FORM

Use the following information to help you complete the Tenancy Application Form. Section headings and numbers match the questions on the form.

1. RENTED PREMISES

A. ADDRESS OF RENTED PREMISES

This is the address of the house or unit that is the rental property, as it appears on the residential tenancy agreement.

B. RENTAL BOND NUMBER

This is the number on the receipt issued by NSW Fair Trading after the bond has been lodged. For rental bond number details contact NSW Fair Trading on 13 32 20.

C. REAL ESTATE AGENCY DETAILS

If the rented premises is managed by a real estate agency, please include the agency's name and postal address.

D. RELATED FILE NUMBERS

If you have already been to NCAT, or if this is a cross claim to an application already pending before NCAT, enter the previous file numbers if you know them. These should be file numbers of other matters with the same parties.

E. ADDITIONAL INFORMATION

National Disability Insurance Scheme

Tick this box if your application is about a dispute with goods or services that were funded by the National Disability Insurance Scheme (NDIS). For more information visit the NDIS website.

Domestic Violence Termination Notice

Victims of domestic violence can end their tenancy immediately by giving a domestic violence termination notice to the landlord and co-tenant(s). A landlord or any remaining co-tenant(s) can apply to NCAT to dispute the validity of the domestic violence termination notice. For more information visit the NSW Fair Trading website.

2. APPLICANT

A. APPLICANT TYPE

The applicant is the person who is lodging the application form. Tick the box that best describes who you are.

B. APPLICANT'S DETAILS

Provide your full name as it appears on the residential tenancy agreement.

Real estate agents applying on behalf of a landlord must provide the landlord's name as it appears on the residential tenancy agreement.

For multiple applicants, please list all applicants on the application form. If there is insufficient space, attach the additional information on a separate sheet.

For co-tenant disputes, please attach the landlord's details on a separate sheet.

Do you want NCAT notices and correspondence emailed to you?

By providing an email address you agree to receive all future case-related correspondence by email, including the notice of hearing. If you are the applicant's representative, please provide your email address to ensure you receive the notices of hearing, and the not the email address of the person you are representing.

To change your email address after the application is lodged, log into eServices via the NCAT website.

3. RESPONDENT

A. RESPONDENT TYPE

The respondent is the person you are making the application against. Tick the box that best describes who the respondent is.

B. RESPONDENT'S DETAILS

Provide the respondent's name and their postal address. If there are multiple respondents, please specify the names of all respondents on the application form. If there is insufficient space on the form you may attach the additional information.

Note: Make sure the respondent is named correctly. If the information provided about the respondent is incorrect, this may delay proceedings or result in orders being made that are unenforceable.

Attach a company or business name extract

If the respondent is a company or business, please attach a current business name extract or company extract from the Australian Securities and Investment Commission (ASIC) which shows their registered name and address. Extracts can be purchased online on the ASIC website.

4. ORDER DETAILS

A. WHAT ORDERS DO YOU WANT?

Specify the section of the *Residential Tenancies Act 2010* and the orders you want NCAT to make. A list of the orders NCAT can make is available in the Tenancy and Social Housing Fact Sheet.

You can request more than one order. Check that the orders you are seeking are within the jurisdictional time limits.

If you are unsure which order to select, please contact NSW Fair Trading for assistance on 13 32 20.

B. REASONS FOR ASKING FOR ORDERS?

You must explain why you are lodging the application and seeking orders from NCAT. Your reasons must be detailed enough so that the respondent can understand what the dispute is about. Attach additional information on a separate sheet if there is insufficient space.

5. LANGUAGE AND DISABILITY SUPPORT

A. SUPPORT REQUIREMENTS

If you have a special need please specify on the application form. Otherwise contact NCAT and ask to speak to a Deputy Divisional Registrar to discuss your individual requirements.

B. INTERPRETER

NCAT can organise an interpreter upon request for parties to proceedings. If you need and interpreter for the hearing, tick the box and specify the language and dialect required.

6. APPLICATION CHECKLIST

I have attached all other documents relevant to this application

Include all relevant information with your application. Refer to the information below on evidence and supporting materials. Do not include any confidential information with your application. Any documents given to NCAT must also be given to the other party.

I have attached a recent ASIC company or business name extract

If the respondent is a company or business, please attach a company extract or business name extract from ASIC which shows their registered name and address. Extracts can be purchased online on the ASIC website.

I have made a copy of this application for my own records

Before lodging your application with NCAT you must make a copy of your application for your own records.

I have attached the application fee

You must pay the application fee when lodging your application. The fee schedule is available on the NCAT website.

To pay by credit card, submit a credit card authority form with your application. Surcharges apply. Cheque or money order payments are to be made out to 'NSW Civil and Administrative Tribunal' or 'NCAT'. Payments can be made in person at any NCAT Registry or Service NSW Centre.

If you are unable to pay the concession fee or are not eligible, NCAT may consider waiving the fee fully or partially. To request a fee waiver please complete the fee waiver request form.

7. SIGNATURE

You must print your name and sign and date the application form. If the application form is submitted without being signed, this will cause unnecessary delays.

EVIDENCE AND SUPPORTING MATERIALS

At the hearing, depending on the orders you want, you will need to provide evidence to support your side of the story.

Your evidence and supporting materials may include:

- Residential tenancy agreement (lease)
- Rent receipts and/or rent records (ledger) including payments made and current rent
- Bond information
- Ingoing and/or outgoing condition reports
- Termination notice details
- Copies of all correspondence between parties
- Details of goods and monetary value
- New tenant checklist (information statement)
- Repayment plans where you have negotiated a repayment arrangement to clear the unpaid rent or bond
- Photographs showing the condition and state of repair of the rent premises (or of other comparable premises if relevant)
- Copies of any quotes, accounts or receipts for work carried out or to be carried out on the premises
- Statements, statutory declarations or affidavits from witnesses or other interested persons
- Authority to act if you are being represented.

You must comply with any orders the Tribunal makes to provide evidence to the other party and the Tribunal before the hearing.